



EUROPEAN COMMISSION
DIRECTORATE-GENERAL FOR COMPETITION

The Director-General (acting)

Brussels,
COMP/C5/LC/(2025)/6534

Peter Ferenc

By e-mail: ask+request-16666-41fc8a8b@asktheeu.org

Subject: EASE 2025/6534 – Your request of 10 December 2025 for access to documents pursuant to Regulation (EC) No. 1049/2001 relating to Case COMP/M.10815 – DEUTSCHE TELEKOM / ORANGE / TELEFONICA / VODAFONE / JV

Dear Sir,

Thank you for your email of 10 December 2025, registered on the same day under the above-mentioned reference number, concerning Case COMP/M.10815 – DEUTSCHE TELEKOM / ORANGE / TELEFONICA / VODAFONE / JV, in which you request access to documents in the Commission's case file in accordance with Regulation (EC) No. 1049/2001 ⁽¹⁾ ("Regulation 1049/2001").

1. DOCUMENTS CONCERNED

In your message you request access to all the documents which are part of the administrative file of DG Competition concerning Case COMP/M.10815 – DEUTSCHE TELEKOM / ORANGE / TELEFONICA / VODAFONE / JV.

You requested: *“full access to all documents related to case M.10815 – Deutsche Telekom / Orange / Telefónica / Vodafone – Joint Venture. In particular, ... to The complete Joint Venture Agreement (unredacted) All annexes and amendments to the JV Agreement The Shareholders Agreement Governance and operational rules of the joint venture The complete and unredacted version of the Commission’s decision The Form CO notification submitted by the parties All market analysis and internal assessments performed by DG COMP All correspondence exchanged between DG COMP and the notifying parties concerning this joint venture”*.

⁽¹⁾ Regulation (EC) N° 1049/2001 regarding public access to European Parliament, Council and Commission documents, OJ L145, 31.5.2001, p. 43

The documents you request access to form part of the case file in a merger case concerning an investigation under the EU Merger Regulation 139/2004 ⁽²⁾ (the "Merger Regulation").

Having carefully examined your request in the light of Regulation 1049/2001, I have come to the conclusion that the documents you have requested access to fall under the exceptions of Article 4 of Regulation 1049/2001. Access to these documents, therefore, has to be refused with the exception provided in Section 4 (*Partial Access*) hereunder. Please find below the detailed assessment as regards the application of the exceptions of Article 4 of Regulation 1049/2001.

2. APPLICABLE EXCEPTIONS

Article 4(2), first indent, protection of commercial interests

Article 4(2), third indent, protection of the purpose of investigations

Pursuant to Article 4(2), first indent of Regulation 1049/2001 the Commission shall refuse access to a document where disclosure would undermine the protection of commercial interests of a natural or legal person.

Pursuant to Article 4(2), third indent of Regulation 1049/2001 the Commission shall refuse access to a document where its disclosure would undermine the protection of the purpose of inspections, investigations and audits.

In its judgment in Case C-404/10 P *Commission v Odile Jacob* ⁽³⁾, the Court of Justice held that for the purposes of interpretation of the exceptions in Article 4(2), first and third indent of Regulation 1049/2001, there is a general presumption that disclosure of documents exchanged between the Commission and notifying and other (third) parties in merger procedures in principle undermines the protection of the commercial interests of the undertakings involved and also the protection of the purpose of investigations related to the merger control proceedings.

The Court ruled that, by analogy to the case law in cases *TGI* ⁽⁴⁾, *Bavarian Lager* ⁽⁵⁾ and *API* ⁽⁶⁾, Regulation 1049/2001 has to be interpreted and applied in a manner which is compatible and coherent with other specific rules on access to information. The Court referred in particular to the Merger Regulation and emphasised that it not only governs a specific area of European Union law, but is also designed to ensure respect for professional secrecy and is, moreover, of the same hierarchical order as Regulation 1049/2001 (so that neither of the two set of rules prevails over the other). The Court stated that, if documents in the merger case-files were to be disclosed under Regulation 1049/2001 to persons other than those authorised to have access according to the merger control legislation, the scheme instituted by that legislation would be undermined. In that regard, the Court ruled that this presumption applies regardless of whether the request for access concerns merger control proceedings which have already been closed or proceedings which are pending.

⁽²⁾ Council Regulation (EC) No 139/2004 of 20 January 2004 on the control of concentrations between undertakings (the EC Merger Regulation), OJ L 24, 29.01.2004, p. 1.

⁽³⁾ Judgement of the Court of Justice of 28 June 2012, *Commission v Éditions Odile Jacob SAS*, C-404/10 P, EU:C:2012:393, paragraph 123.

⁽⁴⁾ Judgement of the Court of Justice of 29 June 2010, *Commission v Technische Glaswerke Ilmenau*, C-139/07 P, EU:C:2010:376.

⁽⁵⁾ Judgement of the Court of Justice of 29 June 2010, *Commission v Bavarian Lager*, Case C-28/08 P, EU:C:2010:378.

⁽⁶⁾ Judgement of the Court of Justice of 21 September 2010, *Sweden and Others v API and Commission*, C-514/07 P, C-528/07 P and C-532/07 P, EU:C:2010:541.

The Court recognized in *Agrofert* ⁽⁷⁾ that general presumptions of non-disclosure are applicable to merger control proceedings, because the legislation which governs those proceedings also provides for strict rules regarding the treatment of information obtained or established in the context of such proceedings. The disclosure of such documents would undermine the procedural rules system set up by the Merger Regulation, and in particular the rules on professional secrecy and access to the file.

As ruled by the Court in the *Agrofert* case ⁽⁸⁾, if a document is not accessible under the "access to file procedure", it cannot be made available to the public under Regulation 1049/2001. In essence, the Merger Regulation and Regulation 1049/2001 have different aims but must be interpreted and applied in a consistent manner. The rules on access to file in the Merger Regulation are also designed to ensure respect for professional secrecy and are of the same hierarchical order as Regulation 1049/2001 (so that neither of the two sets of rules prevails over the other).

Natural and legal persons submitting information in the context of the Merger Regulation have a legitimate expectation that – apart from the publication of the Section 1.2 of the Form CO and of the final decision cleared of business secrets and other confidential information – the information they supply to the Commission on an obligatory or voluntary basis under the Merger Regulation will not be disclosed.

It should be noted that the general presumption of non-disclosure outlined above is also applicable to cases where the investigation has already been closed. The prospect of publication of sensitive information concerning the economic activities of the undertakings involved after a procedure is closed runs the risk of adversely affecting the willingness of undertakings to cooperate when such a procedure is pending. ⁽⁹⁾

Undertakings have a legitimate commercial interest in preventing third parties from obtaining strategic information on their essential, particularly economic interests and on the operation or development of their business. Moreover, the assessments made by the Commission and contained in Commission's documents are commercially sensitive.

The documents requested by you, as specified above, are part of the file in a competition case, have not been brought into the public domain and are known only to a limited number of persons. In particular, the documents you request access to contains commercial and market-sensitive information regarding the activities of the involved undertakings whose public disclosure would undermine their commercial interests. This information concerns in particular commercial strategies. Disclosure of these documents could bring serious harm to the undertakings' commercial interests.

Undertakings also have a legitimate interest that the information is used only for the purposes of the Commission proceedings in application of the Merger Regulation. It is for this reason that Article 17(1) the Merger Regulation provides that information acquired through the investigative powers of this regulation is used only for the purpose for which it was acquired, namely the administrative Commission procedure and the Court review of the decision resulting from this procedure.

⁽⁷⁾ Judgement of the Court of Justice of 28 June 2012, *Commission v Agrofert Holding*, C-477/10 P, EU:C:2012:394, paragraph 59.

⁽⁸⁾ *Agrofert Holding*, paragraphs 32-40.

⁽⁹⁾ See the judgement of the General Court of Judgment of the General Court of 28 March 2017, *Deutsche Telekom v Commission*, T-201/15, EU:T:2017:224, paragraphs 44-45; see also, by analogy, the judgements in *Éditions Odile Jacob* and *Agrofert Holding* quoted therein.

Also, pursuant to Article 17(2) of the Merger Regulation, information covered by professional secrecy submitted to the Commission in the context of this regulation cannot be disclosed to the public.

These exceptions aim at protecting the Commission's capacity to ensure that undertakings comply with their obligations under European Union law. For the effective conduct of investigations it is of utmost importance that the Commission's investigative strategy, preliminary assessments of the case and planning of procedural steps remain confidential.

Careful respect by the Commission of its obligations in this domain has so far created a climate of mutual confidence between the Commission and undertakings, under which the latter have cooperated by providing the Commission with the information necessary for its investigations. Recourse to formal decisions requesting the information (subject to sanctions) or occurrences of opposition to inspections are indeed rare.

In these circumstances, disclosure despite the protection provided for by the above-mentioned regulations, would lead to a situation where undertakings subject to investigations and potential informants and complainants would lose their trust in the Commission's reliability and in the sound administration of competition files. These parties would then become reluctant to cooperate with the Commission and would reduce their cooperation to a minimum. This, in turn, would jeopardise the Commission's authority and lead to a situation where the Commission would be unable to properly carry out its task of enforcing EU competition law. Consequently, the purpose of merger procedures and, implicitly, of the effective enforcement of the EU competition rules would be undermined.

It thus follows that the requested documents are covered by a general presumption of non-disclosure of documents in merger case-files.

In view of the foregoing the requested documents are covered by the exception set out in Article 4(2), first indent and third indent of Regulation 1049/2001.

The general presumption recognised in the case-law cited above does not exclude the possibility of demonstrating that certain documents, of which disclosure is sought, are not covered by the presumptions. However, you have not demonstrated this in your application.

3. OVERRIDING PUBLIC INTEREST IN DISCLOSURE

Pursuant to Article 4(2) of Regulation 1049/2001, the exception to the right of access contained in that Article must be waived if there is an overriding public interest in disclosing the documents requested. In order for an overriding public interest in disclosure to exist, this interest, firstly, has to be public (as opposed to private interests of the applicant) and, secondly, overriding, i.e. in this case it must outweigh the interest protected under Article 4 (2), first and third indent of Regulation 1049/2001.

According to the *Agrofert* ⁽¹⁰⁾ judgment, the abovementioned general presumptions do not exclude the right for the applicant to demonstrate the existence of an overriding public interest justifying the disclosure of the document requested.

In your application you submit as follows:

“Given that this joint venture fundamentally influences the competitive landscape of the EU telecommunications market and affects millions of EU citizens, I consider that the public interest in transparency clearly outweighs any potential claims of commercial

⁽¹⁰⁾ *Agrofert Holding*, paragraph 86.

confidentiality, in line with the principles established by the Court of Justice of the European Union.”

However, as repeatedly confirmed in the case-law, considerations of a purely general nature, such as those outlined in your request, cannot be used to establish that the public interest is especially pressing and, therefore, capable of prevailing over the need to protect the Commission’s investigations and the commercial interests of the undertakings. In this regard, please see paragraphs 156-159 of the Judgment of the Court of Justice of 21 September 2010 in case C-514/07, *Sweden and Others v API and Commission*, and paragraphs 68-71 of Judgment of the General Court of 5 October 2022 in case T-214/21, *Múka v European Commission*.

Consequently, the prevailing interest in this case lies in protecting the effectiveness of the Commission’s merger investigations and the commercial interests of the undertakings concerned.

4. PARTIAL ACCESS

In accordance with Article 4(6) of Regulation 1049/2001, I have also considered the possibility of granting partial access to the sections of the concerned document.

Part of the Form CO notification document to which you have requested access is already in the public domain. This document corresponds to Section 1.2 of the Form CO in case COMP/M.10815 – DEUTSCHE TELEKOM / ORANGE / TELEFONICA / VODAFONE / JV, which has been published on the Commission's competition website, in the public case register under the case number COMP/M.10815 – DEUTSCHE TELEKOM / ORANGE / TELEFONICA / VODAFONE / JV, which you can consult at the following link: <https://competition-cases.ec.europa.eu/cases/M.10815>.

I therefore refer you to this publicly accessible link, in line with Article 10(2) of Regulation 1049/2001.

However, as far as the other sections of the requested document submitted by the notifying parties are concerned, the general presumption recognised by the Court in *Odile Jacob* applies. Therefore, no access to those other sections of the document will be granted.

Regarding the other documents and having carefully examined the requested documents, I note that partial access may be granted.

A number of documents to which you have requested access are already partially in the public domain. These documents have been published at this link: <https://competition-cases.ec.europa.eu/cases/M.10815>. I therefore refer you to these public sources.

5. MEANS OF REDRESS

In accordance with Article 7(2) of Regulation (EC) No 1049/2001, you are entitled to make a confirmatory application requesting the Commission to review this position.

Such a confirmatory application should be addressed to the Secretariat-General of the Commission within 15 working days upon receipt of this letter. You can submit it

by mail, to:

European Commission
Secretariat-General
Transparency, Document Management & Access to Documents (SG.C.1)
BERL 7/076
B-1049 Bruxelles

or by email to: sg-acc-doc@ec.europa.eu.

Yours faithfully,

Electronically signed

Linsey MCCALLUM,
p.o. Anthony WHELAN